

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-12

20230930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND, INC.

v.

MSC MEDITERRANEAN SHIPPING COMPANY SA

JOINT STATUS REPORT

Pursuant to the Presiding Officer's June 18, 2024 Order Entering Protective Order and Scheduling Joint Status Report ("June 18 Order"), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond, Inc. ("Complainant" or "BBBY"), and Respondent MSC Mediterranean Shipping Company SA ("Respondent" or "MSC" and, collectively with BBBY, the "Parties"), by their respective undersigned counsel, hereby submit the joint status report required by the June 18 Order.

A. Status Of Discovery/Unresolved Disputes

Consistent with the Scheduling Order, the parties timely served their respective initial requests for production of documents ("RFPs") and interrogatories ("Interrogatories" and, together with the RFPs, the "Requests") on May 1, 2024, and timely served their respective objections and responses thereto on June 3, 2024 (collectively, the "Objections"). Complainant served Respondent with 57 RFPs and 31 Interrogatories, not including sub-parts of RFPs or Interrogatories. Respondent served Complainant with 52 RFPs and 21 Interrogatories, not including sub-parts of RFPs or Interrogatories.

Counsel for the Parties have met and conferred with respect to the Requests and Objections

for several hours in three separate sessions. In these meet and confer sessions, counsel for the Parties discussed their respective Requests and Objections in detail. The Parties are pleased to report that in virtually all instances they were able to resolve the Objections through clarification of the relevant Request, narrowing or modification of the Request, withdrawal of the Objection, an agreement to provide partial and/or alternative information/documents, or some combination of the foregoing. In some instances, the Parties have agreed in principle to stipulations (subject to agreement on final wording) to address issues raised by Requests to which there were Objections.

There was one area of particular sensitivity, namely those Requests by Complainant that sought certain financial information from Respondent. Counsel for the Parties have reached tentative agreement on an approach that would furnish Complainant with information satisfactory to it. Counsel for Respondents is discussing that approach with Respondent. Assuming Respondent agrees and is able to furnish the information contemplated by the tentative agreement, the Parties believe they will have successfully avoided disputes with respect to this issue. There are a small number of other issues with respect to which the terms of a compromise remain to be confirmed by one of the Parties. However, the Parties are optimistic that such confirmation will be forthcoming. In the unlikely event confirmation is not forthcoming with respect to the small number of proposals that are pending, the Parties believe they will likely be able to resolve the issue(s) through further dialogue.

At this time, the Parties believe that it is unlikely that any motions to compel will be necessary. It is possible that a dispute may arise as the Parties move forward in the discovery process. However, in the event it becomes necessary for one or both of the Parties to file a motion to compel, such motion is likely to be narrowly focused on one or a limited number of issues. The Parties do not anticipate a need for the Presiding Officer to become heavily involved in the discovery process.

B. Compliance With Remaining Deadlines

The Parties are working diligently to adhere to the Scheduling Order in this proceeding. They have agreed to produce documents on a rolling basis. Respondent has already produced approximately 6,600 documents totaling approximately 48,500 pages. Complainant's initial production is scheduled to occur in the very near future.

Having said this, the volume of documents and information to be reviewed and produced in this proceeding are nothing short of massive. In addition to the considerable resources necessary to review and produce its own documents, each Party will also need similar resources to review and analyze the documents produced by the other Party.

Although they are working to comply with existing deadlines, the sheer number of Requests and the volume of responsive documents and information may necessitate some extension of the deadlines for the completion of discovery. The Parties have agreed to meet and confer with respect to their ability to comply with existing deadlines no later than mid-July and, if they conclude any modifications to existing deadlines is required, to file an appropriate joint motion immediately thereafter.

Dated: July 1, 2024

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/s/ J. Lee Hill

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Respectfully submitted,

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